

# Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Rules, 2012

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State of Andhra Pradesh - Act

Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Rules, 2012

ANDHRA PRADESH

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Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Rules, 2012

Rule ANDHRA-PRADESH-REGISTRATION-OF-HORTICULTURE-NURSERIES-REGULATION-RULES-2012 of 2012

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Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Rules, 2012

Published vide Notification No. G.O. Ms. No. 211, Agriculture and Co-operation (Horti), dated 12.12.2012

Last Updated 8th August, 2019

No. G.O. Ms. No. 211. - In exercise of the powers conferred by subsection (1) of Section 23 of the Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Act, 2010 (Act No.13 of 2010) the Government of Andhra Pradesh hereby makes the following rules, -

1.

Short title and Commencement.

(1)

These Rules may be called the Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Rules, 2012.

(2)

It shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires,

(1)

'Act' means the Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Act, 2010

(2)

'Form' means a form appended to these rules.

(3)

All other terms and expressions used herein but not defined shall have the meaning assigned to them in the Act.

Part-I

3.

Application for grant of Licence, Fees and Documents.

(1)

Any owner who desires to obtain a Licence under sub-section (1) of Section 5 shall apply to the competent authority in whose Jurisdiction the Nursery lies in Form "A"

(2)

The applicant shall deposit an amount of Rs. 1000/- (Rupees One Thousand only) towards License fee in the Government Treasury by way of challan to the following Head of Account;

0401

-

Crop Husbandry

MH-800

-

Other receipts

SH 81

-

Other items

(3)

The Fee deposited under sub-rule (2) shall be refunded, only if the licence is not granted for reasons other than non compliance of required conditions under the Act, after deducting 5% of the fee paid towards processing cost.

(4)

Every such application for grant of licence shall be accompanied by the following documents

(a)

Proof & address of the Nursery along with photograph of the owner; (Telephone bill/Electricity bill /Voter identity card / Adhar card.

(b)

Land documents; (pattadarpass book/ lease deed

(c)

Layout map prepared by any recognized surveyor or agency.

(d)

Existing Infrastructure in nursery with complete details

(e)

Soil and Water Analysis reports from Govt, labs/laboratories recognized by the Government.

(f)

Statement of production particulars for the last three years.

(g)

Digital photographs of the Nursery;

(h)

Receipt of the fee;

Note. - Layout plan of nurseries, (land utilization details) should be accompanied with photographs of the Nursery not less than 4 nos any of the following:

(1)

Total extent of Nursery in acres along with survey No.

(2)

Location of mother blocks/pedigree blocks with details

(3)

Internal roads and pathways in the Nursery

(4)

Irrigation source (Borewell / Open well/Tanks/Canals).

(5)

Location of plant material production block.

(6)

Details of field beds and kinds of varieties of plants in each bed in the production block.

(7)

Vermicompost units if any.

(8)

Shade nets, poly house, poly tunnels, grafting sheds if any.

(9)

Farm equipment like Tractor, Power Tiller, Generator etc.

4.

Inspection Report.

- The Competent authority shall on receipt of the application inspect by himself or caused to be inspected by any person not below the rank of Horticulture Officer, the horticulture nursery for which Licence has been applied. The inspection report shall be prepared in Form "B"

5.

Grant of license.

- On receipt of the report of the Inspecting Officer the competent authority may, if satisfied that the applicant fulfills the conditions grant a licence in Form 'C'. If it is not so satisfied he may refuse to grant licence and shall in its order give reasons for such refusal.

Provided that every order granting or refusing a licence shall be made within a period of ninety days from the date of the receipt of the application for licence.

6.

Application for Renewal of licence and fee.

(1)

Every holder of licence who desires to get his licence renewed shall apply in Form 'D' to the competent authority through the Horticulture Officer having Jurisdiction over the area in which the nursery is situated not less than thirty days before the date of expiry of the licence. Such application shall be accompanied by a Treasury challan in proof of deposit of the renewal fee. The Horticulture Officer shall, while forwarding the application to the competent authority, record his comments on a separate letter.

(2)

The renewal fee of L 500/- (Rupees Five Hundreds only) shall be paid as stated in sub-rule (2) of Rule 3. The renewal fee shall be refunded if the renewal of the licence is refused after deducting 5% of the fee paid towards processing fee

7.

Renewal of licence.

- On receipt of the comments of the Horticulture Officer, the Competent authority may, if satisfied that the applicant has not contravened any of the conditions of the licence or any provisions of the Act or these rules, renew the licence for a maximum period of three years in Form 'E'. If he is not so satisfied he may refuse the renewal and shall in its order give reasons for such refusal.

Provided that every order renewing or refusing to renew a licence shall be made within a period of ninety days of the

date of receipt of the application for renewal by the Competent Authority.

8.

Register of licences.

- The Competent Authority shall maintain a Register of Licencees in Form 'F' in which the names of persons to whom the licences are granted / renewed / refused from time to time shall be entered.

9.

Keeping of records by licensee.

- Every holder of a licence shall keep a complete record of the origin or source of every root-stock and every scion mentioned under clause (b) of Section 6 of the Act in Form 'G'

10.

Maintenance of Registers of sale of plants.

- Every holder of a licence shall maintain a Register mentioned under clause (g) of Section 6 of the Act in form 'H' showing the name of the Horticulture plant sold to any person, its age, the name of the root stock and scion, bud wood and the name and the address of the person purchasing it, and shall produce the Register for inspection on demand by the Director or Inspecting officer;

11.

Register of plant protection measures.

- Every holder of a licence shall maintain a Register mentioned under clause (m) of Section 6 of the Act in Form T giving the details of the plant protection measures under taken.

12.

Register of performance of the progeny tree.

- Every holder of a licence shall maintain a Register mentioned under clause (d) of Section 7 of the Act in Form 'J' wherein the performance of the progeny trees shall be recorded along with number of plants raised and number of plants ready for sale.

13.

Issue of Permit.

- The Government may, regulate the Transport, the Export and the Import of Horticulture Plants material under Section 8 of the Act, on application by the Nursery Owners in Form 'K', issue permits in Form 'L'.

14.

Suspension or Cancellation of licence.

- The competent authority may suspend or cancel any licence granted or renewed under this Act on any one or more of the following substantial grounds in addition to the grounds mentioned from clause (a) to clause (e) of subsection (1) of Section 9 of the Act.

(a)

The licensee has not been conducting the business honestly or in a fair manner.

(b)

The licensee has refused to surrender or produce his licence or registers and other records required to be maintained under the Act and these rules to the competent authority or any person authorized by it.

(c)

If any genuine complaints are received from the consumer.

(d)

If he sells poor quality plants viz. disease / infested plants, selling the plants over and above the price fixed by the Horticulture Department, etc

(e)

If the plant material sold is found to be not of assured (true ) variety.

15.

Issue of duplicate licence.

- If a licence granted to an owner is lost, or destroyed, mutilated or damaged, the competent authority shall, on application and on payment of Rs. 300/-(Rupees Three hundreds only) issue a duplicate licence.

16.

Appeal.

(1)

Any person aggrieved by an order of a competent authority refusing to grant or renew a licence or suspending or cancelling a licence, may appeal under sub-section (1) of Section 12 in form 'M' within ninety days to the appellate authority.

(2)

Every appeal shall be in writing and accompanied by a copy of the order of the competent authority against which appeal has been preferred.

(3)

Every appeal shall be accompanied by an appeal fee of Rs. 300/- (Three Hundred) as prescribed in sub-rule (2) of Rule 3.

17.

Inspection Register.

- An Inspection Register mentioned under sub-section (3) of Section 15 shall be maintained by the nursery man for giving instructions in Form 'N'.

Part-II

18.

Objectives.

- Every nursery holder shall keep in mind the following objectives of the Act before making an application for Licence

(1)

To ensure production and supply of genuine and good quality plant material to the Farmers.

(2)

To enforce multiplication of recommended varieties of Horticulture plants for propagation.

(3)

To keep complete record of origin (or) source of root stock and scion material.

(4)

To enable supply of disease and pest free plant material to cultivators.

(5)

To make the Nursery men to maintain complete record of sale of plant material for past 5 years.

(6)

To prosecute the Nurserymen, if found engaged in unauthorized sale and propagation of plant material.

(7)

To check the transaction on nurseries.

(8)

To Restrict the movement of disease and pest effected or infested plant material from one part of the state to other part of state by notification in official Gazette.

(9)

To restrict the movement of infected plant material from other states to the Andhra Pradesh.

19.

The duties of the competent authority.

- The competent authorities shall perform the following duties;

(1)

The Competent Authority may issue license / renew on receipt of application from Nursery owner for production of specified species and varieties of Horticulture plant material for carrying out the business under sub-section (4) of Section 5 of the Act.

(2)

The Competent Authority may take up the inspection of the Nursery directly or may appoint the inspection officer to inspect the Nursery and submit a report and issue directions to the Inspecting officer to inspect the Nursery and submit a report under sub-section (2) of Section 5 of the Act.

(3)

The competent authority shall issue necessary instructions to the licensed owners for creation of basic infrastructure facilities required such as mother block of required variety, root stock, green house, poly house, net house, provision for

solarization of media for the proper propagation of Horticulture plants and for ensuring their quality under sub-section (2) of Section 5 of the Act.

(4)

The Competent Authority may,

(a)

ask any licensee to furnish such information as it may specify in respect of the Horticulture Nursery owned or run by such licensee.

(b)

enter upon and inspect or cause to be inspected any Fruit Nursery and Fruit plants therein and the account books and records relating thereto for the purpose of satisfying itself that the requirements of this Act and the rules, made there under are being complied with,

(c)

collect samples of Fruit plants and get them analyzed, examined or tested in any laboratory selected for the purpose.

(d)

in the discharge of his duties under this Act the competent Authority shall carry out such directions on matters of policy as may be issued by the State Government/Commissioner of Horticulture from time to time.

(e)

after receipt of application along with specified documents along with requisite registration fee, the competent authority may inspect (or) authorize the inspecting officer to inspect the Nursery with the assistance of District Level Technical committee and submit Inspection report to the Competent Authority.

(f)

should complete the inspection of the Nursery within 90 days from the date of receipt of application from Nursery owner, with assistance of district level technical team.) Surveillance and Monitoring:

(i)

conduct surprise visit shall be carried out at least once in a year or as required depending on the performance of the Nursery.

(ii)

the designated team shall essentially conduct surveillance visit during validity of Licencee.

(5)

The Competent Authority shall maintain the following Registers in his office viz.,

(a)

Issue of register of licences to the Nurserymen.

(b)

The list of species with varieties for which the licence accorded for production.

(c)

The complete information on the nursery pertaining to

(i)

nursery Infrastructure

(ii)

scion blocks of root stock and scion sticks / bud wood.

(iii)

production and sales of plant material

(iv)

instructions issued to the Inspection officer for inspection of the Nurseries by the competent authority and District Level Committee.

(v)

technical directions /suggestions issued to the Nurseries.

(vi)

instructions/Directions/Orders received from the Appellate Authority and Commissioner of Horticulture, AP, Hyderabad.

20.

The Inspection Officer may perform the following duties.

(a)

According to the directions of the Competent Authority on receipt of instructions along with application for inspection of the Nursery for issue of licence, the inspection officer shall inspect the Nursery along with the check list and submit the report.

(b)

Later, the inspection officer shall carry out inspection of each Nursery licenced under these rules at least once in three months and shall prepare copy of the report in triplicate of his visit. One copy of the visit shall be pasted on the inspection register of the Nursery, the second copy shall be submitted to the competent authority and third copy is maintained in his office record.

(c)

The inspection officer shall maintain the register pertaining to the inspection reports of the Nurseries and the instructions and directions received from the Competent Authority.

(d)

The inspection officer shall take the assistance of the District Level Committee for the technical information for inspection of the Nurseries.

(e)

To conduct the visual inspections and regular random checks, the inspection officer may check the propagating material for varietal purity, variety trueness, Health and external quality .If inspection officer observes any discrepancy in the nursery he shall submit digital photographs along with justification.

(f)

The inspecting officer should give prior intimation atleast once a week in advance of their time schedule for inspection of Nursery, so as to enable the Nursery owner to make himself available. The inspecting officer should stick on to the time schedules for inspection of Nursery without any deviation.

(g)

The inspecting officer should inspect the Nursery along with district level team in between 8.00 a.m to 6.00 p.m.

(h)

The inspection officer should inspect the Nursery along with application and documents and verify the correctness of details given in application and submit the same to competent authority with remarks and recommend for issue of license, in case if the Nursery is fit for issue of license based on the fulfilling the quality standards as prescribed by National Horticulture Board according to Section 6 (d).

21.

Duties of Licensed nursery.

- Every holder of a license under this Act shall perform the following duties.

(a)

All the Nursery owners who obtain the licence should undertake to multiply only such varieties of the Horticulture plants specified in the license in respect of scion or root stock, for propagation and sale as may be directed by the competent authority.

(b)

If at any time during the currency of the licence, the licensee should desires to undertake the propagation of the plant material other than those mentioned in the licence, he shall make an application to the Competent Authority specifying therein the plant material sort to be propagated and obtain permission from the Competent Authority and to undertake the propagation of plant material.

(c)

Keep a complete record of the origin or source of every root-stock and every scion showing

(i)

the botanical name, together with local name, if any, of the root stock used;

(ii)

the botanical name, together with the local name, if any, of the scion used in raising the Horticulture plants.

(iii)

display a board in local language showing the plant stock position and price structure at the entrance of the Nursery.

(iv)

display the board with green colour back ground and white labeling.

(d)

Keep a lay out plan showing the variety of root stock and scion trees raised in the Nursery;

(e)

Keep the Nursery plants as well as the parent trees used for the propagation of Horticulture plants free from pests and diseases and maintain the quality standards as prescribed by National Horticulture Board, Government of India or State Horticulture Board / State Horticulture Department/ Horticultural University.

V. Bud wood / Scion for pedigree material should be sourced from elite mother plants from Research Stations of Dr. Y.S.R Horticulture University.

(f)

Undertake to grow the Horticulture plants in such manner as may be directed by the competent authority;

(g)

All Horticulture (Fruit) plants intended for sale shall have a conspicuous label shall specifying the name of the variety of Horticulture plant, it's age and the name of the root stock.

(h)

Maintain a register showing the name of the Horticulture plant sold to any person, its age, the name of the root stock and scion, bud wood and the name and the address of the person purchasing it, and shall produce the record for inspection on demand by the Director or Inspecting officer;

(i)

Exhibit the rates charged by him for each of the Nursery plants sold by him at a conspicuous place in the Nursery;

(j)

Maintain a Bill Book and issue sale bill containing Book number, machine numbered bill, showing species, variety name, quantity and sale rate in the Nursery or by the trader.

(k)

The Nursery register shall be preserved by the Nurseryman for at-least five years after the date of conclusion of the transaction.

(l)

Every licence holder shall maintain a folder containing the nursery act and rules updated from time to time and also orders, instructions issued by the Commissioner of Horticulture (m) Undertake to release for sale or distribution only such Horticulture plants as are completely free from any kind of pests or disease;

(n)

Keep the plants as well as the progeny trees used for the production of Nursery plants free from any kind of pests and disease;

(o)

Maintain a register giving the details of the plant protection measures undertaken;

(p)

Submit annual statement for each financial year in such form as may be prescribed by the Commissioner or Director of Horticulture by 15th April of every year.

(q)

The price structure and quality standards as prescribed by the Commissioner or Director of Horticulture from time to time shall be followed by the licensee for producing and sale of the plant material.

(r)

The Nursery man or trader has to give intimation to the Committee to be constituted by the Commissioner or Director of Horticulture from time to time, having jurisdiction over the Nursery to certify the quality of plant material, if any plant material is procured from outside the State. The certificate from the committee of the district has to be obtained for every consignment to the effect that plant material procured from the nurseries outside the State is free from pests and diseases.

(s)

The plant material for which license has been granted shall only be utilized by the nursery owner for propagation, subject to the following conditions namely;

(i)



the varieties of scion and rootstock produced and used in the Nursery shall be those approved by the State Horticulture Department or the A.P., Horticulture University from time to time. The plant health condition of the scion blocks should be as prescribed by the Dr. Y.S.R.H.U.

(ii)

the vegetatively propagated plant material shall be in direct proportion to the availability of root stock and scion wood with the Nurseryman;

(iii)

the Nurseryman shall maintain a map showing the details of the fields of beds and the kinds of varieties of plants in each bed. This shall apply to the seedlings as well as budded and grafted plant material;

(iv)

it is the primary responsibility of Nurserymen to produce the plant material with specific identity of the species and varieties, plant health and quality of the product viz.,

(a)

Fruits: the 'source identified', 'selected', 'qualified' and 'tested' category and with the requirements of characters specified for the varietal purity and with plant health condition.

(b)

vegetable Seedlings - The 'source identified', 'selected', 'qualified' and 'tested' category and with the requirements of characters specified for the varietal purity and with plant health condition.

(c)

ornamental plants - The source identified, selected, qualified and tested category and with the requirements of characters specified for the varietal purity and with plant health condition.

(v)

in case varietal characters differentiation is observed in any of the species due to agro climatic conditions prevailing in the State in various zones, the confirmation and certification for the specific varieties shall be obtained from the Horticulturist/Scientist from Dr. Y.S.R.H.U.

(vi)

seeds, cuttings, plants and trees that show no visible abnormalities may still have quality defects or carry damaging viruses, viroids, Bacteria, fungi or other organisms, healthy Flowers, Trees and Vegetables grow from the healthy propagating material of very highest quality. In such cases laboratory testing gives deeper insight into the condition of the propagating material. Hence, as preventive testing of healthy material wherever necessary, the diagnostic test (ex: Viral Indexing in citrus species) may be taken up for identifying the pathogens or casual agent of the problem or disorder.

(vii)

the Nurseryman shall maintain the register wherein the performance of the progeny trees shall be recorded along with number of plants raised and number of plants ready for sale; the quality standards should be maintained as prescribed by Dr. Y.S.R.H.U for all the grafts, seedlings and plants

(viii)

the competent authority may declare mother trees as unfit for use, if he is satisfied that use of such plant material shall affect the interest of Horticulture on account of the following reasons;

(a)

Poor quality of plant material / Horticulture product with reference to plant health condition viz., physical, physiological and phytopathological conditions from Dr. Y.S.R.H.U.

(b)

Poor bearing capacity;

(c)

Infested with insects, pests and disease which cannot be cured;

(d)

Horticulture plants of unknown pedigree; (e) Any other reasons which may be considered fit by the competent authority in the interest of Horticulture.

(ix)

the Nursery man shall quarantine all trees and shall not use their budwood for further propagation in any case should

there be a danger of the spread of the insects, pests and diseases to other nurseries and Nursery plants and such infected trees may be ordered by the competent authority to be destroyed and the Nursery shall carry out those orders. Such orders shall also be applicable to the supply of planting material.

(x)

the plant material produced at nurseries particularly for the Citrus species and for other species where ever necessary has to be tested at Government laboratories and certificate to be obtained with regard to quality, plant health condition viz., physical, physiological and phytopathological conditions.

(xi)

for identification and certification of the species and varieties grown for all the Horticultural crops and also to verify the conditions prescribed under section 7 of the Act with reference to the propagation of plant material, the registers shall be maintained at Head office while issuing the license.

22.

(1)

Quality parameters of various plant material to meet the requirements of the plant material produced in the Nurseries to maintain the standard quality planting material for supply to the beneficiaries and Farmers

(1)

Mango Grafts:

(a)

Veneer Grafts only

(b)

The plant should be in the poly bag size of 10"x7"x350 guage containing at least 2kgs of pot mixture (Earthen pots are not acceptable)

(c)

The Graft should be with 4-5 flushes (6-9 months age)

(2)

Cashew grafts:

(a)

5-6 months old grafts soft wood grafted plants

(3)

Sapota Grafts

(a)

Veneer/Approach grafts

(b)

The graft should be in the poly bag of 11" x 7" x 350 guage containing 2Kgs of pot mixture

(c)

Sapota grafted on pala rootstock only should be supplied.

(4)

Sweet orange:

(a)

Plant should be 2 to 2-1/2 feet height with 4 or 5 branches

(b)

Girth of the plant should be 2-1/2 to 3-1/2 cm.

(c)

Bud joint should be in between 6" to 9" inches from surface.

(d)

Union should be very firm and uniform.

(e)

The plant should be healthy i.e.the plant material should be free viral, fungal and other pest infestations.

(f)

The plant should be supplied after minimum 1 week observation for stabilization.

(g)

They should ensure that the plants are lifted after the stabilization at their nursery and supplied accordingly.

(h)

Count for the number of plants will be taken after observation of 1 week from date of supply at site.

(i)

Ensure that the scion (Bud) is collected from viral indexing mother plant.

(j)

Rangapur lime variety should be used as root stock for sweet orange

(5)

Seethaphal Grafts:

(a)

Veneer / Wedge grafts

(b)

The plant should be in the poly bag size of 10"X7"X350 guage containing at least 2kgs of pot mixture.

(c)

The height of the plant should be 3-1/2 - 4 feet

(6)

Guava Grafts

(a)

The plant should be in the poly bag containing at least 1kg pot mixture.

(b)

The height of the plant should be at least 3 - 3-1/2 feet with new flush.

(7)

Pomegranate Layers:

(a)

The plants should have been propagated by hard wood or semi hard wood cutting or Ground layers with good root development and 2-3 side branches.

(b)

The plants should be in poly bag of 8"X5" size containing 3/4 th Kg pot mixture.

(c)

Layers plants should be hardened for 3 to 6 months after separation

(d)

Rooting of layered plant should be good

(e)

Height of the layered plant should be 1-1/2 to 2'

(f)

Layer should be free from pests and disease.

(8)

Ber Budlings. - Budlings with 6 months age and a thickness of less than pencil.

The height of the budlings should be 2 - 2-1/2 feet in a poly bag (Tubular) of 15 cms (H) X 10 cms (W)

The budlings should possess atleast 6 pairs of new leaves.

(9)

Coconut seedlings:

The seedlings should be 1yr old with a height of 4-1/2 - 5 feet, health, free from pests & diseases with  $\geq$  5cm girth having, 5-6 active leaves.

(10)

Acid lime :

(a)

The plants should be in poly bags of size 7"x11"x300 guage.

(b)

The plants should be free from pests and 'diseases.

(c)

The plants should be healthy without any nutrient deficiencies.

(d)

The plant height should be 2-2-1/2 feet with a girth of 2-2-1/2 cm

(2)

All the above plants should also possess the following characters.

(a)

Grafts joint / bud joint should be perfect with a uniform thickness of root stock and scion stick.

(b)

The graft / bud joint should be 8" (20 cms) above soil level in the poly bag.

(c)

The plants supplied should be kept in observation for 10 days and then only should be distributed among the farmers.

The died / Dried plants are not countable. The nursery supplier should water and maintain during observation period.

(d)

The plants should be free from any pests and diseases, especially viral diseases.

Note. - (1) The minimum quality parameters are prepared by taking into consideration of local agro climatic conditions with reference to the guidelines communicated by NHB.

(2)

As the State of AP prevails under different agro climatic conditions, any variation in the growth habit and development of the plant, the Nursery growers are to consult the Horticulture Scientist from APHU and get confirmation for all the species mentioned above, if any other Fruit crops raised in the Nursery, vegetable seedlings and Ornamental plants. The above may be documented.

23.

Criteria For Maintenance of Scion Blocks (Mother trees / Progeny trees).

(1)

The bud sticks / graft wood should always be taken from healthy and true to type progeny trees of commercial / new varieties.

(2)

Criteria for selection of mother plants is as follows;

(i)

mother plants of the varieties should be genetically true to type.

(ii)

the mother plants should be healthy, free -from any diseases, pest infestation and physiological disorders.

(iii)

the mother plant should have known pedigree record regarding bearing potential, fruit quality, source, origin and age etc.

(iv)

the mother plants should be precocious and prolific bearer

(v)

the mother plants meant for collection of Bud sticks/ scion should be properly labeled variety wise, approximate age, source of collection of material, approximate yields, disease free, pest free and no physiological disorders. All the Sweet orange mother plants should be serially numbered to facilitate indexing for the scion blocks selected for the collection of bud wood, the same group of trees may be distinguished.

(vi)

in case own progeny block is not available, bud wood / scion for pedigree establishment shall be sourced from elite mother plants from research stations of Dr. YSRHU.

(vii)

in case of citrus species, the mother plants should be done viral indexing by citrus virologist / citrus pathologist atleast once in a year provided by Dr .YSRHU.

(viii)

the Nursery owner should have the mother blocks at his own, within the Village/Mandal/Districts with proper records.

(ix)

in case, if the Nursery owner has taken mother blocks on lease, within the district / outside district for the collection of

bud sticks / scion, the Nursery owner should ensure that the mother plants are healthy, free from pests and diseases, physiological disorders and having good bearing capacity and record of mother trees origin if available approximate age etc.

(x)

in such cases, the Nursery owner should take the lease agreement from the supplier for not less than one year prior to production of plant material.

(xi)

in case if the mother plants are existing outside the district (either own / lease). The competent authority will refer the competent authority of the other district and obtain details, before issuing the licence.

(xii)

in case of citrus species, the mother plants should be away from the nursery site to avoid contamination of pests and diseases and collect the bud sticks from viral indexed mother trees. Field map of bud wood block row wise need to be maintained for easy sample collection for indexing

(xiii)

the Nursery owner should maintain a register containing the plant protection measures taken up on the scion blocks from time to time.

(xiv)

the mother blocks are to be inspected by the inspecting officers, District level team accompanying ADH, scientist from Dr. YSRHU, DFO and certify the mother trees before collection of scion / buds. The team has to see the indexing report before certification.

24.

Approximate scion sticks / bud wood that can be collected from the major Fruit crops are as follows.

-

S.No

Species

Age of the tree

Avg No. of sticks can be collected per plant

1

Mango

5-10 yrs

250

> 10 yrs

500

2

Sapota

5-10 yrs

200

> 10 yrs

300

3

Cashew

5-10 yrs

125

> 10 yrs

300

4

Guava graft

5-10 yrs

300

> 10 yrs

500

5

Guava Layers ( for 2 seasons)

> 5 yrs

100-150

6

Sweet Orange

> 5 yrs

200

> 10 yrs

500

7

Pomegranate ( for 1 year)

2nd year

100

3rd year onwards

200

8

Seethaphal

5-10 yrs

200

> 10 yrs

300

9

Coconut

> 8 yrs

25-30 nos of successful seedlings per tree

Note:

(1)

(2)

(3)

The no. of plants

produced should be proportionate to the existing no. of trees in the scion blocks according to the availability of scion sticks shown above with different species either in own plants in the nursery or leased plants with reference to the Fruit species

For the species

which are not mentioned above, may be ascertained with Scientists from the Horticulture Research Station, Dr. YSRHU.

Regarding Vegetables and Ornamental plants the production capacity should be ascertained with reference to the plant material produced and existing scion blocks by the technical committee or inspection officer during their inspections.

Form - A

[See Rule 3 (1)]

Application For Grant of Licence Under the Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Act, 2010

To

.....  
.....  
.....

{

Passport size photograph of the Nursery owner

}

Sir,

As I Sri / Smt ..... S/o /W/o..... R/o..... wish to establish / conduct a Horticulture Nursery in ..... Village ..... Mandal.....District.....I may kindly be granted a licence for this purpose as required under the Act. The detailed particulars of the Nursery are given below:-

1. Name of the Nursery Contact Phone No:

2. Name & status of owner Individual / Partnership Central / State Govt. APHU / SAUs / Organization under ICAR/CSIR Cooperative Society, Trust, Company, Others

3. Year of Establishment (With date / month)

4. If Joint owners No & Names of the owners Name and full address with phone no's.

5. Location of the Nursery

a. Land survey No.

b. Village

c. Mandal

d. District

e. State

f. Nearest Railway station

6. Total area of the Nursery (in Ha) including Mother plants with Survey No.

I. Details of Mother trees

A. Own Mother Trees

S.No.

Village

Mandal

Survey No.

Area Ha

Species

Varieties

No. of plants

Source of plant material

Age

Performance record

Year

Month

Yes

No

\* In case information on source of Plant material is not available, their performance in respect of yield and quality of fruit before being used as mother plant may be given

B. Mother plants taken from other source

Sl. No

Name of the owner of

Mother plants and Address contact No.

Village

Man dal

District

Survey No

Area (Ha)

Species

Varieties

No of plants

Source of plant material (mother)

Age

Performance

Year

Month

Yes

No

\* In case of mother plants taken on lease, the registered lease document should be produced indicating, No. of plants, species/varieties wise, age, extent (Ha) performance of yield, lease validity period

II. A. Details of mother plants of root stock - Owners Nursery

Sl.No.

Area (Ha)

Root stock

Source of Mother plants

No. of plants

Age

Performance record

Species

Varieties

Yes

No

(B)

If the root stock/seed/plants are not produced at his own, furnish details are as follows

1. Name of the Nursery owner / Source

2. Licence No.

Sl.No.

Species (Plants/Seeds)

Varieties

Source of stock

Address and Contact No

Date of purchase

No. of plants/ Quantity of seed

Performance record

Yes

No

III. Name of grafted/Budded plants/ rooted cutting / Vegetable nurseries

Sl.No.

Species (Plants/Seeds)

Varieties

Method of propagation

No.of plants produced

Current year

Last two years

1st

2nd

3rd

IV. Details of the facilities for production of quality with disease free planting material

Sl.No.

Type of infrastructures

Number

Year of erection / Purchase



Area

1

2

3

4

5

6

7

Poly tunnels

Shade net house

Poly house

Potting shed

Tools and equipment

Certification

Other specify

7. Source of irrigation:

a. Ground water

b. Surface water

c. Micro Irrigation (Drip/ Sprinkler)

8. Details of operations

Calendar of operations for production of planting material

Input requirement for production and specifications

Labeling for plant material produced

Record maintenance in production Register

9. Details of Technically qualified staff in the Nursery and their trainings

S.No

Name of the individual

Qualification

Training underwent, if any

Note. - Priority shall be given for the students of Horticultural Polytechnic/B.Sc (Horti) of Dr. YSRHU during staff recruitment.

10. Action plan for production of Horticulture plants/ vegetable seedlings for next 3 years

Sl.No.

Species (Plants/Seeds)

Varieties

Method of propagation

No. of plants proposed to be propagated for next

3 years

1st year

2nd year

3rd year

11. Trade Relationship with any recognized Nursery YES/NO (If Yes details to be furnished)

12. Period of previous experience in Nursery business? (Indicate in years and year of establishment)

13. If so, the no. of Horticulture plants produced and sold, during last (2) years (Furnish the information separately to all species and varieties)

14. Particulars of application fee paid by challan.

Challan No

Date

Amount

15. The documents to be enclosed with application

(1)

The Sketch plan of the area under Nursery with complete infrastructure, land documents like pattadar pass book / adangal / pahangi copies of the area.

(2)

Soil and Water analysis reports of the Farm are to be enclosed.

(3)

Details of the farm tools and equipment available for control of insects pests and plant diseases.

(4)

The digital photographs of the location of the Nursery, scion blocks, existing infrastructure and production site are to be enclosed.

(Minimum 4 photographs)

(5)

Particulars of registration with any agency / Registration no / Fee paid.

16. Declaration

1. I hereby declare that the information given above is true to the best of my knowledge & belief.

2. I have read the Act & Rules made there under and under take to fulfill all the conditions prescribed in the Act and rules as may be amended from time to time.

3. I undertake to sell only quality plants at reasonable price.

4. I undertake to obtain any additional requirements of the mother plants & root stock that are at present not available in my Nursery, if any through the competent authority.

5. Furnish the land documents in proof of his land ownership for Mother blocks / Nursery (or) Registered lease documents for Mother blocks for collection of scion / Nursery

I have read the Act and the rules framed thereunder and shall abide by all the conditions mentioned therein.

EnclosuresDate:Place:

Yours faithfully(Signature of the Applicant & Name in Block letters)

Form - B

[See Rule (4)]

Report of the Inspecting Officer

Name:Designation:Address:

I hereby certify that I have inspected the ..... (Name of Nursery) ..... run / owned / managed by Shri / M/s..... on dated ..... And on my personal observation state that-

(i)

The applicant has an area of.....Ha under Nursery, with survey No....., Village....., Mandal.....And District.....;

(ii)

progeny tree and the following varieties have been found to be existing at the time of inspection:-

S.No

Ownership

Kind of fruit trees

Variety

Performance (Yield & quality)

No. of trees

Age of trees

Condition of trees

Area (Ha)

1

2

3

4

5

6

7

8

9

Own (or) Lease

• Indicate the details separately for Own / lease for mother blocks. If it is on lease, the registered lease agreement has to be furnished.

(iii)

A sketch of the Nursery and the progeny orchard being maintained by the owner is enclosed;

(iv)

The details of the existing infrastructure in the Nursery.

(v)

The details of production of plant material atleast for (3) years as per the records available in the Nursery or information furnished by the Nursery owner.

(vi)

The Nursery is / is not being kept free from the insects, pests and diseases;

(vii)

The progeny trees are / are not being maintained in good condition;

(viii)

The soil is / is not suitable for Nursery production work.

(ix)

The water is / is not suitable for Nursery production work

(x)

The Nursery owner is / is not competent to conduct / establish the Nursery on approved lines, for reasons given below:

(xi)

The information supplied by the applicant is / is not correct;

(xii)

Additional information

(xiii)

1 recommend / do not recommend it as a fit case for grant of licence.

(xiv)

If not recommended reasons thereof.

Enclosed check list Dated: Place:

Signature of Inspecting Officer Name & Designation (in block letters) and seal of the Office

Check list for the inspection of the Nursery

S.No

Particulars of the Nursery

Remarks of the inspection officer with reference to the application of the applicant

\*1

Name of the Nursery owner with address

\*2

Layout of plan of Nursery, (land utilization details) viz.,

\*3

Total extent of Nursery in acres along with survey no, Layout map (FMB) indicating the borders

\*4

(a) Location of mother blocks/pedigree blocks

(b) Production capacity of mother plants

(approximately) species wise with reference to the Annexure - IV

Production capacity should be enclosed separately

5

Internal roads and pathways in the Nursery

\*6

Location of plant material production block.

7

Details of field beds and kinds of varieties of plants in each bed.

\*8

Irrigation source (Borewell /Open well/Tanks/Canals).

9

Vermicompost units if any

10

Shade nets, poly house, poly tunnels, packing sheds if any

11

Farm equipment like Tractor, Power Tiller, Generator etc

\*12

Display board in local language showing the plant root stock position and price structure of species/varieties (as per Section 6 (b)(iii) of the Act)

13

Display of board should be given color background with white labeling (as per Section 6 (b)(iv) of the Act)

14

Proper labeling of Horticulture plants intended for sale. (Specify name of the species, variety, age, name of root stock) Section 6(f) of the Act.

15

Office building and any other structures available in the Farm Nursery Register

16

Mother blocks/pedigree inventory

17

Root stock, plant material, seeds, production /procurement.

18

Production of plant material/sale and distribution of plants (Sec. 6(g)).

19

Plant Protection measures taken up on mother blocks/scion.

20

Information on Soil and water analysis reports

21

Details of discarding culled material mother trees infected with pest & diseases, over aged plant

material, infected material etc (as per Sec 7 (c).

22

Details of exports and imports of plant

material (as per Section (8)).

23

Advice from the technical personnel for

implementation in the Nursery

24

Bill books in prescribed format (Section 6(i))

\* Mandatory requirements

Dated:Place:

Signature of Inspecting Officer Name & Designation (in block letters) and seal of the Office

Form - C

[See Rule (5)]

Licence For Establishing/conducting A Horticulture Nursery Under The Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Act, 2010 (Act No. 13 of 2010)

Licence No..... Date of

issue..... Name of the

owner.....Son of.....

Name of the Nursery.....Extent of Nursery (in

acres) Survey

No.....Village.....

Post office.....Mandal.....

District..... Contact

No.....

The above Nursery is hereby granted licence to raise, exhibit for sale and sell for transplantation, fruit plants of the following kinds and varieties:-

S.No

Crop

Variety

1

2

3

Conditions:

1. The licence is valid for a period of (3) years from to.....

2. The licensee shall not contravene any of the provisions of Act, or the rules framed thereunder.

3. The licensee shall conduct this business honestly and in a fair manner.

4. The licensee shall produce his licence or the register and other records required to be maintained under this Act and the rules framed thereunder on demand by the competent authority or any person authorized by it.

5. The licensee shall not permit evasion or infringement of any of the provisions of the Act or rules framed thereunder and shall report in writing to the competent authority any evasion or infringement which comes to his knowledge.

6. The licensee shall promptly comply with the instructions issued to him in accordance with the rules by the competent authority or by any person authorized by it.

7. If a licensee transfers in a whole or in parts his control over the fruit Nursery to anybody he shall send an intimation of such transfer to the competent authority within a period of one month of the transfer.

8. The Licence holder shall keep an undated copy of the Act & Rules

9. The Licence holder shall keep a copy of instructions issued by the competent authority and Commissioner of Horticulture.

10. The Licensee shall be displayed at a prominent and conspicuous place in nursery premises open to the public.

Signature of the competent Authority with a seal of this office.

Form - D

[See Rule 6 (1)]

Application For Renewal of Licence Under the Andhra Pradesh Registration of Horticulture Nurseries (Regulation) Act, 2010

To.....Sir,

{

Passport size photograph of the Nursery owner

|

|

}

As I / We .....S/o / W/o..... R/o..... wish to state that we established a Horticulture Nursery in.....Village..... Mandal.....District.....I / we may request you to renew our licence for this purpose as required under the Act. The detailed particulars of the Nursery are given below:-

1. Name of the Nursery

2. Name & status of owner Individual / Partnership Central / State Govt. APHU / SAUs / Organization under ICAR/CSIR Co-operative Society, Trust, Company, Others

3. Year of Establishment (With date / month)

4. If Joint owners No & Names of the owners Name and full address with phone No.

5. Location of the Nursery

g. Land survey No.

h. Village

i. Mandal

j. District

k. State

l. Nearest Railway station

6. Total area of the Nursery (in acres) including Mother plants with Survey No.

I. Details of Mother trees

A. Own Mother Trees

S.No.

Village

Mandal

Survey No.

Area Ha

Species

Varieties

No. of plants

Source of plant material

Age

Performance record

Year

Month

Yes

No

\* In case information on source of Plant material is not available, their performance in respect of yield and quality of fruit before being used as mother plant may be given

B. Mother plants take from other source

Sl. No

Name of case the owner of Mother plants and

Address contact No.

Village

Mandal

District

Survey No

Area (Ha)

Species

Varieties

No of plants

Source of plant material (mother)

Age

Performance

Year

Month

Yes

No

\* In case of mother plants taken on lease, the registered lease document should be produced indicating, No. of plants, species/varieties wise, age, extent (Ha) performance of yield, lease validity period

II. A. Details of mother plants of root stock - Owners Nursery

Sl.No.

Area (Ha)

Root stock

Source of Mother plants

No. of plants

Age

Performance record

Species

Varieties

Yes

No

(B)

If the root stock/seed/plants are not produced at his own, furnish details are as follows

1. Name of the Nursery owner / Source

2. Licence No.

Sl.No.

Species (Plants/Seeds)

Varieties

Source of stock

Address and Contact No

Date of purchase

No. of plants/ Quantity of seed

Performance record

Yes

No

III. Name of grafted/Budded plants/ rooted cutting / Vegetable nurseries

Sl.No.

Species (Plants/Seeds)

Varieties

Method of propogation

No.of plants produced

Current year

Last two years

1st

2nd

3rd

IV. Details of the facilities for quality with disease free planting material

Sl.No.

Type of infrastructures

Number

Year of erection / Purchase

Area

1

2

3

4

5

6

7

Poly tunnels

Shade net house

Poly house

Potting shed

Tools and equipment

Certification

Other specify

7. Source of irrigation:

d. Ground water

e. Surface water

f. Micro Irrigation (Drip/ Sprinkler)

8. Details of operations

Calendar of operations for production of planting material

Input requirement for production and specifications

Labeling for plant material produced

Record maintenance in production Register

9. Details of Technically qualified staff in the Nursery and their trainings

S.No

Name of the individual

Qualification

Training underwent, if any

10. Action plan for production of Horticulture plants/ vegetable seedlings for next 3 years

Sl. No.

Species (Plants/Seeds)

Varieties

Method of propagation

No. of plants proposed to be propagated for next

3 years

1st year

2nd year

3rd year

11. Trade Relationship with any recognized Nursery YES/NO

(If Yes details to be furnished)

12. Period of previous experience in Nursery business? (Indicate in years and year of establishment)

13. If so, the no. of Horticulture plants produced and sold, during last (2) years (Furnish the information separately to all



species and varieties)

14. Particulars of application fee paid by challan.

Challan No

Date

Amount

15. The documents to be enclosed with application

(1)

The Sketch plan of the area under Nursery with complete infrastructure, land documents like pattadar pass book / adangal / pahangi copies of the area.

(2)

Soil and Water analysis reports of the Farm are to be enclosed.

(3)

Details of the farm tools and equipment available for control of insects pests and plant diseases.

(4)

The digital photographs of the location of the Nursery, scion blocks, existing infrastructure and production site are to be enclosed. (Minimum 4 photographs)

(5)

Particulars of registration with any agency / Registration no / Fee paid.

(6)

Particulars of previous licence:

1. Date of Issue:-----

2. No. of licence:-----

(7)

Are there any complaints against previous license holder -

Yes/No

(8)

Performance of the Nursery owner during the period of license

(Statement may be enclosed)

(9)

Declaration

(1)

I hereby declare that the information given above is true to the best of my knowledge & belief.

(2)

I have read the Act & Rules made there under and under take to fulfill all the conditions prescribed in the Act and rules as may be amended from time to time.

(3)

I undertake to sell only quality plants at reasonable price.

(4)

I undertake to obtain any additional requirements of the mother plants & root stock that are at present not available in my Nursery, if any through the competent authority.

(5)

Furnish the land documents in proof of his land ownership for Mother blocks / Nursery (or) Registered lease documents for Mother blocks for collection of scion / Nursery

I have read the Act and the rules framed thereunder and shall abide by all the conditions mentioned therein.

Date:Place:

Yours faithfully(Signature of the Applicant & Name in Block letters)

Form - E

(See Rule (7))

Renewal of Licence

Original License No \_\_\_\_\_ Date of Issue: \_\_\_\_\_ This licence is renewed .....

Period of renewal

Validity

Signature of the competent authority with seal of  
his office

From

To

1

2

3

4

Conditions:

1. The licence is valid for a period of (3) years from to .....
2. The licensee shall not contravene any of the provisions of Act, or the rules framed thereunder.
3. The licensee shall conduct this business honestly and in a fair manner.
4. The licensee shall produce his licence or the register and other records required to be maintained under this Act and the rules framed thereunder on demand by the competent authority or any person authorized by it.
5. The licensee shall not permit evasion or infringement of any of the provisions of the Act or rules framed thereunder and shall report in writing to the competent authority any evasion or infringement which comes to his knowledge.
6. The licensee shall promptly comply with the instructions issued to him in accordance with the rules by the competent authority or by any person authorized by it.
7. If a licensee transfers in a whole or in parts his control over the fruit Nursery to anybody he shall send an intimation of such transfer to the competent authority within a period of one month of the transfer.
8. The Licence holder shall keep an undated copy of the Act & Rules
9. The Licence holder shall keep a copy of instructions issued by the competent authority and Commissioner of Horticulture.
10. The Licencee shall be displayed at a prominent and conspicuous place in nursery premises open to the public.

Form - F

(See Rule (8))

Register of Licences To Be Maintained By the Competent Authority

S.No

Name of the Nursery

Name of the Nursery Owner and Address

Licence No.

Date of Issue

Licence granted for the Nurseries

Mother plants for scion sticks

Mother plants for root stock

Species to be produced

1

2

3

4

5

6

7

8

Form - G

(See Rule (9))

Maintenance of Records By Licencee

S.No

Record of origin of plants

Source of every root stock

Source of every scion

- 1
- 2
- 3
- 4

(1) Botanical Name

(2) Local name

Form - H

(See Rule (10))

Maintenance of Register of Sale of Plants

S.No

Name of the Horticulture plant

Name of the person & address to whom the  
nursery plants are sold

Plant age (years & months)

Name of the root stock, scion, stick or bud wood

- 1
- 2
- 3
- 4
- 5

Form - I

(See Rule (11))

Register To Be Maintained By The Licencee For Plant Protection Measures

S.No

Name of the components

- 1
- 2
- 3
- 4
- 5

Water quality

Soil quality

Surrounding Air

pollution

Pesticides to control

diseases and pests

Fertilizers for better growth & development  
of the plants

Form - J

(See Rule (12))

Register for Performance of the Progeny Orchard

S.No

Name of the progeny trees

No. of the progeny trees grown & age of the  
trees

No. of plants produced

No. of plants ready for sale & age of the  
plants

- 1
- 2

3

4

5

Form - K

(See Rule (13))

Application for Permit to Import/ Export for Horticulture Plant Material for Sowing / Planting U/s 8 of the APHN(R) Act  
To

The Secretary to Government,  
Agriculture & Co-operation Dept.  
Secretariat,  
Hyderabad.

The undersigned hereby applies for a permit authorizing the import/ export of horticulture plant material for propagation  
as per the details given below:

(Please write/type in Block Letters)

1. Name and address of Importers:

2.

S.No

Description of plant material local name and and  
botanical name to be import /export

Name of Hybrid / variety

Quantity

No. of packs/boxes/bundles

Total weight or Total No. of propagating material

1

2

3

4(a)

4(b)

3. Procedure for propagation of horticulture plant material to be imported/exported

4. Name and address of the nursery owner

5. Name and address of consignor:

6. Country and locality in which horticulture plant material grown:

7. Foreign port of Shipment /Airlift/Road or Railway transit.

8. Approximate date of arrival of consignment in India and name of Air/ Sea port /Road or Railway

9. Quality certificate issued by the District level committee.

10. Declaration

I declare that the information furnished is correct to the best of my knowledge and belief.

I undertake to produce an official Phytosanitary Certificate with additional declarations, if any, as specified in the permit.

I also undertake to pay to the Plant Protection Adviser or the officer duly authorized by him, the prescribed fees to meet  
the cost of inspection, fumigation, disinfestations and disinfection of the consignment referred to above.

Place:Date:

Signature of the Importer or his authorized agent

Form - L

(See Rule (13))

Permit for Export / Import / Transport of Horticulture Plant Material

Permit No \_\_\_\_\_ Date: \_\_\_\_\_ Valid from.....to.....,R/o.....

Village.....,Mandal....., District.....is permitted to export/ import / transport the  
following Horticulture material.

Name of the Plant Material

Quantity of the material

Method of Travel

Name of the place / country / full address

1  
2  
3  
4

Conditions:

(1)

The permit shall be shown to the authorization whenever they direct.

(2)

The permit shall not transferrable.

(3)

The permit holder shall follow the Act, Rules and Instructions.

Signature of the Authority(Official Seal)

Form - M

(See Rule (16))

Appeal Under Sub-Section (1) of Section 12

To

The Commissioner and Director of Horticulture,  
Government of Andhra Pradesh, Public Gardens, Hyderabad.

Sir / Madam,

Sub:- Appeal under sub-section (1) of Section 12 of the APHN (R) Act 2010

Ref:- 1) Order No \_\_\_\_\_ Date: \_\_\_\_\_ from the Competent

Authority \_\_\_\_\_ (Copy Enclosed).

2.

) Challan No: \_\_\_\_\_ , Date: \_\_\_\_\_ ,

«0»

I respectively submit the brief facts of the base and grounds of appeal.

Brief Acts

Grounds

1.

)

2.

)

3.

)

4.

)

5.

)

Signature of the Appellant

Form - N

(See Rule (17))

Inspection Register To Be Maintained By The Nursery Owner To Have Record of The Instructions Given By Inspection Officer

S.No

Date of Inspection

Name of the Inspection Officer

Instructions given by the Inspection officer

1  
2  
3

4

Signature of the Inspection Officer

Related AI tags, queries and research notes

Translation